

**Request for Proposals
RFP-2-11**

Firms to submit proposals to effectively complete ADA Compliance construction of specific areas of the Taco John's Event Center, 1530 E. Lincolnway, Cheyenne, Wyoming.

The City of Cheyenne, Parks & Recreation Department will review proposals and conduct interviews with firms interested in providing a complete construction and repair package for ADA Compliance Upgrades at the Taco John's Events Center.

Firms submitting proposals shall be professional firms licensed to work in Cheyenne, Wyoming. Engineering drawings, if necessary, for project completion will be completed by civil engineers licensed by the Wyoming State Board of Examining Engineers. If the firm submitting the proposal is an out-of-state corporation, the firm shall be registered with the Secretary of the State of Wyoming to do business in Wyoming.

Proposals shall be submitted in writing following the format listed below. The submittal shall address the selection criteria as listed herein and such other data as may be useful in evaluating the ability of the firm to perform the work required. Proposals are to be short and concise.

Information contained in the proposal and submitted shall be incorporated by reference into, and be considered a part of the contract between the City of Cheyenne and the selected firm. The City of Cheyenne reserves the right to make modifications to this RFP. Firms obtaining this RFP will be notified of any modifications via email.

A pre-submittal meeting on this project will be held on November 2, 2010 at 2:00 p.m. onsite at 1530 E. Lincolnway, Cheyenne, Wyoming. Interested firms should attend this meeting to ask questions about this project and receive any information not covered in this RFP. Submittals of proposals (4 hard copies/1 digital format) are to be filed with the Purchasing Department, 2101 O'Neil Avenue, Room 104, Cheyenne, WY, 82001 by November 9, 2010.

Project Background:

The Taco John's Event Center is repairing and upgrading certain areas within the facility to be more compliant with ADA standards. The items listed for repair or upgrade in this RFP are highlighted and contained in the document, listed as Attachment A, which is part of the settlement agreement before the United States of America and the City of Cheyenne, Wyoming, under the Americans with Disabilities Act regarding the Taco John's Event Center. In addition to Attachment A, Attachment B contains further information pertaining to the City's requirements in relation to ADA standards and facility improvements.

Our goal is to work with the selected firm to provide for these repairs during the fall of 2010 and to bring the Taco John's Event Center into compliance with the DOJ agreement.

Scope of Work:

The selected firm will be asked to provide the following:

- a. Perform all design and construction services, provide all material, equipment , tools and labor necessary to complete the work described in and reasonably inferable from the contract documents, including the attached exhibits. The Contractor shall obtain all permits necessary for the execution of the work. The Contractor will not be required to pay for building and related permit fees for permits issued by the City of Cheyenne provided the land and structure(s) are owned by the City of Cheyenne. Permits may be required by other entities which are not furnished or paid for by the City of Cheyenne.

Submittal Format (4 hard copies/1 digital format required):

Provide four hardcopies and one electronic copy in PDF format. Information in each submittal shall be considered public information by the City of Cheyenne. Any information considered to be trade secrets, privileged or confidential should not be revealed in the proposal. Contents of the proposals will be made public after the contract has been awarded and executed. The following sections are required in the submittal

Project Team: Identify the project team members and their positions within, or relationship to, the firm. Identify contributing members not located in Cheyenne. Detail any anticipated sub-consultants. Provide member resumes as part of each description.

Approach to Project: The submitting firm should provide a brief synopsis of their overall philosophy towards building design applicable to this project.

Schedule: The submitting firm should provide an anticipated schedule, beginning with the estimated date of contract execution, to perform the work listed under Scope of Work above. This schedule should show a start date, building permit issue date, product delivery date, completion dates of various bench marks, final completion date, and any other information the submitting firm feels is appropriate. A Gantt chart/bar graph is suggested for this section.

Project Location: The submitting firms should show briefly and concisely their familiarity with the project area. The submitting firm is expected to thoroughly review all data submitted and identify potential problems that may arise during the design document preparation.

Similar Experience/References: The submitting firms should list similar project experience detailing project(s) description, location, budget, etc. Submitting firms should also provide a comprehensive list of references.

Other Information: Provide any information which may be beneficial to the project, or unique qualities/ideas that will improve the project or provide additional value.

Selection Information:

The selection of the successful firm will be made by a committee, appointed by the Director of Parks & Recreation, using a Proposals Based Rating System universal to all interviews, copy attached. Rating forms will be made public after the contract has been negotiated, awarded and executed.

The City of Cheyenne retains the right to reject any and all submittals with or without cause. The City of Cheyenne also reserves the right to consider and rely upon factors other than pricing in its selection process. In the event, after 30 days, negotiations are unsuccessful with the selected firm, the City of Cheyenne may enter into negotiations with the alternate firms submitting proposals according to rank obtained from the Proposals Based Rating System.

Contractual Obligation:

The successful firm will be required to conform to contractual obligations required by the City of Cheyenne during subsequent contract negotiations which may include, but are not limited to, Worker's Compensation Act, Americans with Disabilities Act, Drug Free Workplace, and Indemnification of the City of Cheyenne and proof of professional liability or other insurance required by statute.

Project Contacts:

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City of Cheyenne
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Project Schedule:

10/22/10	RFP Issued, First Public Advertisement
10/29/10	Second Public Advertisement
11/2/10	Pre-Proposal Meeting – 2:00 p.m. onsite
11/9/10	Proposals Due (4 copies), to be filed with the Purchasing Department, 2101 O’Neil Avenue, Room 104, Cheyenne, WY, 82001. Proposals are due no later than 2:00 p.m.
11/12/10	Notification of interview, if required
11/29/10 – 12/1/10	Interviews
12/2/10 – 12/3/10	Notification of selection/Contract Negotiation
12/13/10	Council Meeting – referral to Finance Committee
12/20/10	Finance Committee – review of contract
12/27/10	Council Meeting - consideration of contract
TBD	Execute Contract/All Parties

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Proposals Rating System – Must be filled out completely following each interview.

Name of Firm:

Firm Rating:

Criteria	Description	Weight (10)	Rating	Score	Total Score
Applicable Experience	Quantity and type of experience with similar work.	X	7	=	
Approach to Project	Methods of identifying, understanding and addressing project.	X	8	=	
Cost Saving Innovations	Presentation of cost saving ideas for the project.	X	7	=	
Technical Expertise	Expertise in dealing with the technical issues related to the project	X	8	=	
Adequate Resources	Sufficient staff, equipment and systems in place to complete proposed work with in the requested time frame	X	7	=	
Project Innovations	Ideas or suggestions to improve the quality/schedule of project.	X	9	=	
Performance on Past Projects	Success on previous projects of a similar nature	X	9	=	
Familiarity of Project	Knowledge of project background, needs, goals, limitations and special considerations.	X	8	=	
Proposal Quality	Readability, completeness, brevity and organization of written proposal, quality of oral presentation	X	5	=	
		Total Score			
		Firm Rating			

Scoring Instructions

1. Rate each interview criteria from 1 to 10. 1 is the lowest, 10 is the highest any certain criteria could be rated.
2. Multiply each rating by listed weight and place figure in score box.
3. Add scores and place figure in Total Score box (max.680).
4. Rank each interview and assign points as follows: 3 = First Choice, 2 = Second Choice, 1 = Last Choice (#'s could change depending on amount of interviews conducted). Place figure next to Firm Rating.
5. At conclusion of interviews compare scores and rating from committee, make selection of firm to provide services.

Attachment A

Pursuant to Paragraph 9 of this Agreement, the City will complete the following actions within one year after the effective date of this Agreement. The citations to "Standards" are to the ADA Standards for Accessible Design, 28 C.F.R. pt. 36, app. A.

- A. **Passenger Loading Zone** - The passenger loading zone on the circular drive at the front of TJEC is inaccessible because it lacks an access aisle. Provide a passenger loading zone on an accessible route such that the loading zone has a vertical clearance of at least 114 inches, has an access aisle at least 60 inches wide and 20 feet long adjacent and parallel to the vehicle pull-up space, and has a surface that is firm, stable, slip-resistant, and level with no more than a 2% slope in all directions. Standards §§ 4.1.2(5)(c), 4.6.6.
- B. **Parking** - The parking lot, with a total of 210 parking spaces, is inaccessible because it does not have any van accessible parking spaces, has only 5 spaces reserved for use by persons with disabilities, one of those five parking spaces is inaccessible because it lacks an access aisle, and all of those parking spaces lack the required signage. On the shortest accessible route to the accessible entrance, provide at least 1 van accessible space and 7 standard spaces designated as reserved for people with disabilities. Ensure that standard accessible spaces are a minimum of 96 inches wide and served by access aisles at least 60 inches wide. Ensure that van accessible spaces are a minimum of 96 inches wide and served by access aisles at least 96 inches wide. At all spaces designated as reserved for persons with disabilities, provide vertical signs with the International Symbol of Accessibility located such that they cannot be obstructed by parked vehicles. At van accessible spaces, provide an additional "Van-Accessible" sign located below the International Symbol of Accessibility. Ensure that all spaces and access aisles for persons with disabilities are flat and level, with slopes and cross-slopes not exceeding 2% in all directions, and that their surfaces are firm, stable, and slip-resistant. If the parking facility serves a building with multiple accessible entrances or multiple buildings or facilities, provide dispersed parking spaces located on an accessible route closest to the accessible entrances. Standards §§ 4.1.2(5), 4.6, 4.30.7(1).
- C. **Accessible Routes**
 - i. The interior route to the exterior exit doors (#7) on the southeast side of the arena is inaccessible because objects, such as hockey goals, are obstructing the minimum clear width of the route. Provide and maintain an accessible route to the southeast exit doors with a minimum clear width of 36 inches, except at doors, where the width may decrease to 32 inches. 28 C.F.R. § 35.133, Standards §§ 4.1.3(1), 4.3.3, 4.13.5.

- D. Controls and Mechanisms - The mechanism to open the door to the storage room for the zamboni, is inaccessible because it is mounted 60 inches high. Provide controls that are mounted between 15 and 48 inches above the finished floor for a front approach or between 9 and 54 inches above the finished floor for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Ensure that the controls are operable with one hand and do not require tight grasping, pinching, or twisting of the wrist to operate and require no more than 5 pounds of force to activate. Standards §§ 4.1.3(13), 4.27.2, 4.27.3, 4.27.4, 4.2.5, 4.2.6.
- E. Signage - Throughout the facility, the signage provided is inaccessible because signs are mounted on doors. Provide permanent room signage with upper case, sans serif or simple serif type letters and numerals, meeting the requirements of the Standards for character height, raised characters, finish and contrast, accompanied by Grade 2 Braille; mounted on the wall adjacent to the latch side of the door or on the nearest adjacent wall at a height of 60 inches above the finished floor to the centerline of the sign; and located so that a person may approach within 3 inches of the signage without encountering protruding objects or standing within the swing of a door. Standards §§ 4.1.2(7), 4.30.1, 4.30.4, 4.30.5, 4.30.6.
- F. Lobby
- i. The wall-mounted television in the lobby is inaccessible to people who are deaf or hard of hearing. Provide audio and audio-visual programs with captioning or in another format that provides equally effective communication for people who are deaf or hard of hearing. 28 C.F.R. §§ 35.130, 35.160.
 - ii. The wall-mounted television in the lobby protrudes into the walkway and is not detectable to blind persons using a cane. Provide a circulation path at this location such that no objects with their bottom leading edges measuring between 27 inches and 80 inches above the finished floor protrude more than 4 inches into walks, halls, corridors, passageways, or aisles. Free-standing objects mounted on posts or pylons may overhang 12 inches maximum from 27 inches to 80 inches above the ground or finished floor. Providing a cane-detectable barrier is an acceptable solution. A protruding object (and cane-detectable barrier) shall not reduce the clear width of an accessible route or maneuvering space. Standards §§ 4.1.2(3), 4.4.
- G. Billiards and Video Games Area
- i. The wall-mounted television in the billiards and video games area is inaccessible to people who are deaf or hard of hearing. Provide audio

and audio-visual programs with captioning or in another format that provides equally effective communication for people who are deaf or hard of hearing. 28 C.F.R. §§ 35.130, 35.160.

- ii. The wall-mounted television in the billiards and video game area protrudes into the walkway and is not detectable to blind persons using a cane. Provide a circulation path at this location such that no objects with their bottom leading edges measuring between 27 inches and 80 inches above the finished floor protrude more than 4 inches into walks, halls, corridors, passageways, or aisles. Free-standing objects mounted on posts or pylons may overhang 12 inches maximum from 27 inches to 80 inches above the ground or finished floor. Providing a cane-detectable barrier is an acceptable solution. A protruding object (and cane-detectable barrier) shall not reduce the clear width of an accessible route or maneuvering space. Standards §§ 4.1.2(3), 4.4.

H. Administration - The entrance door is inaccessible because it requires 10 pounds of force to open. Provide a door that requires no more than 5 pounds of force to open. Standards §§ 4.1.3(7), 4.13.11(2)(b).

I. Elevator

- i. The elevator is inaccessible because the cab is 42½ inches wide by 50 inches deep. Provide an elevator with a cab that is a minimum of 51 inches deep from the back wall of the cab to the control panel and 54 inches deep from the back wall of the cab to the face of the door; that, if the doors are centered on the wall, is at least 80 inches wide and, if the doors are located to one side of the wall, is at least 68 inches wide. Provide a door opening that is at least 36 inches wide, and that floor surfaces are firm, stable, and slip-resistant. Standards §§ 4.1.3(5), 4.10.9, 4.10.10, Fig. 22.
- ii. The elevator is inaccessible because the doors remain open for a maximum of 15 seconds while they are obstructed by a person or object. Provide doors that open and close automatically with a reopening device that will stop and reopen the car door and hoistway door automatically if the door becomes obstructed by an object or person. Provide a device that is capable of completing these operations without requiring contact for obstructions passing through the opening at heights of 5 inches and 29 inches above the finished floor; that door reopening devices remain effective for at least 20 seconds, after which the doors may close; that the minimum time from notification that a car is answering a call until the doors of that car start to close is 5 seconds; and that the minimum time for elevator doors to remain fully open in response to a car call is 3 seconds. Standards §§ 4.1.3(5), 4.10.6, 4.10.7, 4.10.8, Figs. 20, 21.

J. Arena

- i. The arena is inaccessible to people who are deaf or hard of hearing because, although there is fixed seating and an audio amplification system, there is no assistive listening system. Provide a permanently installed assistive listening system serving the fixed seating. Ensure that the seating served by the system is located within a 50 foot viewing distance of the stage or playing area and has a complete view of the stage or playing area. Provide receivers equal in number to 4% of the total number of seats for use by the general public, and provide signage indicating their availability. 28 C.F.R. § 35.160, Standards §§ 4.1.3(19)(b), 4.30, 4.33.
- ii. The arena, containing 600 fixed seats, is inaccessible because: (1) the arena does not have the required number of fixed wheelchair seating locations; (2) the wheelchair seating locations are not dispersed around the seating bowl; (3) the wheelchair seating locations are not in all of the different admission price categories; (4) the wheelchair seating locations do not provide lines of sight over standing spectators; (5) fixed companion seats are not provided next to each wheelchair seating location; and (6) the wheelchair seating locations do not comply with the required dimensions. In the fixed seating area, provide wheelchair seating locations totaling more than one percent of the total number of fixed seats in the arena for that event (for example, if the arena has 608 seats for a hockey game, then at least 7 wheelchair seating areas are required), each with a minimum clear ground or floor space of 33 inches wide by 48 inches deep for forward or rear access, or 33 inches wide by 60 inches deep for side access. Ensure that the ground or floor at all wheelchair locations is level, firm, stable, and slip resistant; that wheelchair seating areas are an integral part of the fixed seating plan so as to provide people with physical disabilities a choice of admission prices and lines of sight comparable to those available to members of the general public; that wheelchair seating areas adjoin an accessible route that also serves as a means of egress in case of emergency; and that at least one fixed companion seat, identified by signage, is provided next to each wheelchair seating area. In areas where spectators can be expected to stand during the show or event (for example, hockey, football, basketball games, or rock concerts), all or substantially all of the wheelchair seating locations must provide a line of sight over standing spectators. Standards §§ 4.1.3(19)(a), 4.5, 4.33, Fig. 46.
- iii. Ticketing - Although the City sells tickets online for events at the TJEC, wheelchair seating areas are not available for purchase online. In order to provide people with disabilities with an equal opportunity to benefit from the online ticketing service provided by the City, the City will sell tickets

for wheelchair seating areas online and in the same manner that any other seats are sold online. This requires tickets to be purchased online without relying on further contact with the box office to secure either wheelchair or companion seats. 28 C.F.R. § 35.130.

- K. Ice Skate Rental Office - The Ice Skate Rental Office counter protrudes into the main walkway and is not detectable to blind persons using a cane. Provide an accessible route at this location such that no objects with their bottom leading edges measuring between 27 inches and 80 inches above the finished floor protrude more than 4 inches into walks, halls, corridors, passageways, or aisles. Providing a cane-detectable barrier is an acceptable solution. A protruding object (and cane-detectable barrier) shall not reduce the clear width of an accessible route or maneuvering space. Standards §§ 4.1.2(3), 4.4.
- L. Women's Toilet Room
- i. The entrance door is inaccessible because it requires 15 pounds of force to open. Provide a door that requires no more than 5 pounds of force to open. Standards §§ 4.1.3(7)(b), 4.13.11(2)(b).
 - ii. Although there are 8 stalls, there is no ambulatory stall provided. Provide at least one stall that is exactly 36 inches wide with a toilet measuring 18 inches from each wall or partition, an outward swinging, self-closing door, parallel grab bars complying with Fig. 30(d), and a toilet complying with Standards § 4.16. Standards §§ 4.1.3(11), 4.16, 4.22.4, 4.26, Fig. 30(d).
 - iii. No accessible coat hook has been provided. Provide a coat hook at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
 - iv. The thermostat is inaccessible because the controls are mounted at 60 inches above the finished floor. Provide a thermostat with the controls a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(13), 4.27.2, 4.27.3, 4.2.4, 4.2.5, 4.2.6.
 - v. The wall-mounted feminine products dispenser protrudes into the main walkway and is not detectable to blind persons using a cane. Provide an accessible route at this location such that no objects with their bottom leading edges measuring between 27 inches and 80 inches above the

finished floor protrude more than 4 inches into walks, halls, corridors, passageways, or aisles. Providing a cane-detectable barrier is an acceptable solution. A protruding object (and cane-detectable barrier) shall not reduce the clear width of an accessible route or maneuvering space. Standards §§ 4.1.2(3), 4.4.

M. Men's Toilet Room

- i. The entrance door is inaccessible because it requires 15 pounds of force to open. Provide a door that requires no more than 5 pounds of force to open. Standards §§ 4.1.3(7), 4.13.11(2)(b).
- ii. No accessible coat hook has been provided. Provide a coat hook at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
- iii. The thermostat is inaccessible because the controls are mounted at 60 inches above the finished floor. Provide a thermostat with the controls a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(13), 4.27.2, 4.27.3, 4.2.4, 4.2.5, 4.2.6.

N. Coach/Referee Locker Room

- i. The designated accessible roll-in shower is inaccessible because no shower spray unit is provided and the shower head is mounted at 80 inches above the finished floor, and the shower lacks grab bars. Provide a shower in this room that is exactly 36 inches wide and 36 inches deep with an L-shaped shower seat mounted on the wall opposite the controls and extending the full depth of the stall, with a 48 inch long and 36 inch wide clear floor space alongside the shower opening which extends 1/2 inches beyond the shower wall on which the seat is mounted, enabling a parallel approach (Fig. 35(a)), and with a curb no greater than 1/2 inch on a shower that is at least 30 inches deep and 60 inches wide with no curb or flat threshold and with a 36 inch deep and 60 inch wide clear floor space at the shower opening (Fig. 35(b)). Ensure that the shower has grab bars, controls, a shower spray unit, and a seat, curb, and enclosure, if provided, that comply fully with the Standards and with Figs. 35, 36, and 37, as applicable. Standards §§ 4.1.3(11), 4.21, Figs. 35, 36, 37.

- ii. The toilet is inaccessible because it lacks grab bars. Provide a rear grab bar that is at least 36 inches in overall length, with the closer end no more than 6 inches from the side wall, and a side grab bar that is at least 42 inches in overall length, with the far end mounted at least 54 inches from the rear wall and the closer end 12 inches or less from the rear wall. Provide grab bars that are mounted 33 to 36 inches above the finished floor; with a diameter between 1¼ and 1½ inches; with 1½ inches between the grab bars and the wall; and at least 1½ inches between the grab bars and any other object beside or below it, such as a toilet paper dispenser or a toilet seat cover dispenser, and at least 18 inches between the grab bar and any object above it. Standards §§ 4.1.3(11), 4.22.4, 4.17.6, 4.26.2, Figs. 30, 39.
- iii. The bench is inaccessible because it is not 24 inches deep. Provide a 24 inch by 48 inch bench fixed to the wall along the bench's longer dimension. Ensure that the bench has sufficient structural strength and is mounted with its surface between 17 inches and 19 inches above the finished floor. Provide clear floor space alongside the bench to allow a person using a wheelchair to make a parallel transfer onto the bench. Standards §§ 4.1.3(21), 4.35.4, 4.26.3.

O. Team Locker Rooms #1 and #2

- i. The entrance door to locker room #1 is inaccessible because it requires 20 pounds of force to open. Provide a door that requires no more than 5 pounds of force to open. Standards §§ 4.1.3(7), 4.13.11(2)(b).
- ii. The pull side of at least one of the doors, which is accessed through a front approach, is inaccessible because it has less than 18 inches of clearance on the latch side. On the pull side of the door, provide maneuvering clearance at least 60 inches deep and provide a minimum of 18 inches (24 inches is preferred) of maneuvering clearance on the latch side of the door. Standards §§ 4.1.3(7), 4.13.6, Fig. 25(a).
- iii. No accessible clothes/towel hook has been provided. Provide a hook at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
- iv. The bench is inaccessible because it is not 24 inches deep. Provide a 24 inch by 48 inch bench fixed to the wall along the bench's longer dimension. Provide a bench that has sufficient structural strength and is mounted with its surface between 17 inches and 19 inches above the

finished floor. Provide clear floor space alongside the bench to allow a person using a wheelchair to make a parallel transfer onto the bench. Standards §§ 4.1.3(21), 4.35.4, 4.26.3.

- v. No accessible coat hook has been provided in the designated accessible toilet stall. Provide a coat hook at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
- vi. The toilet paper dispenser is inaccessible because it is mounted more than 36 inches from the rear wall. Provide a toilet paper dispenser that is mounted with its top at least 1½ inches under the side grab bar and 36 inches or less from the rear wall and is centered at least 19 inches above the finished floor. Standards §§ 4.1.3(11), 4.22.4, 4.17.3, Fig. 30(d).
- vii. The wall-mounted paper towel dispenser protrudes into the main walkway and is not detectable to blind persons using a cane. Provide an accessible route at this location such that no objects with their bottom leading edges measuring between 27 inches and 80 inches above the finished floor protrude more than 4 inches into walks, halls, corridors, passageways, or aisles. Providing a cane-detectable barrier is an acceptable solution. A protruding object (and cane-detectable barrier) shall not reduce the clear width of an accessible route or maneuvering space. Standards §§ 4.1.2(3), 4.4.
- viii. No accessible shower has been provided. Provide a shower in this room that is exactly 36 inches wide and 36 inches deep with an L-shaped shower seat mounted on the wall opposite the controls and extending the full depth of the stall, with a 48 inch long and 36 inch wide clear floor space alongside the shower opening which extends 12 inches beyond the shower wall on which the seat is mounted, enabling a parallel approach (Fig. 35(a)), and with a curb no greater than ½ inch OR a shower stall at least 30 inches deep and 60 inches wide with no curb or threshold and with a 36 inch deep and 60 inch wide clear floor space at the shower opening (Fig. 35(b)). Ensure that the shower has grab bars, controls, a shower spray unit, and a seat, curb, and enclosure, if provided, that comply fully with the Standards and with Figs. 35, 36, and 37, as applicable. Standards §§ 4.1.3(11), 4.21, Figs. 35, 36, 37.

P. Team Locker Rooms #3 and #4

- i. The entrance door to locker room #3 is inaccessible because the force required to open the door is 18 pounds. Provide a door that requires no

more than 5 pounds of force to open. Standards §§ 4.1.3(7)(b), 4.13.11(2)(b).

- ii. The entrance door to locker room #4 is inaccessible because it requires 18 pounds of force to open. Provide a door that requires no more than 5 pounds of force to open. Standards §§ 4.1.3(7), 4.13.11(2)(b).
- iii. The pull side of at least one of the doors, which is accessed through a front approach, is inaccessible because it has less than 18 inches of clearance on the latch side. On the pull side of the door, provide maneuvering clearance at least 60 inches deep and provide a minimum of 18 inches (24 inches is preferred) of maneuvering clearance on the latch side of the door. Standards §§ 4.1.3(7), 4.13.6, Fig. 25(a).
- iv. No accessible clothes/towel hook has been provided. Provide a hook at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
- v. The bench is inaccessible because it is not 24 inches deep. Provide a 24 inch by 48 inch bench fixed to the wall along the bench's longer dimension. Provide a bench that has sufficient structural strength and is mounted with its surface between 17 inches and 19 inches above the finished floor. Provide clear floor space alongside the bench to allow a person using a wheelchair to make a parallel transfer onto the bench. Standards §§ 4.1.3(21), 4.35.4, 4.26.3.
- vi. No accessible coat hook has been provided in the designated accessible toilet stall. Provide a coat hook at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
- vii. No accessible shower has been provided. Provide a shower in this room that is exactly 36 inches wide and 36 inches deep with an L-shaped shower seat mounted on the wall opposite the controls and extending the full depth of the stall, with a 48 inch long and 36 inch wide clear floor space alongside the shower opening which extends 12 inches beyond the shower wall on which the seat is mounted, enabling a parallel approach (Fig. 35(a)), and with a curb no greater than ½ inch OR a shower that is at least 30 inches deep and 60 inches wide with no curb or threshold and with a 36 inch deep and 60 inch wide clear floor space at the shower opening (Fig.

35(b)). Ensure that the shower has grab bars, controls, a shower spray unit, and a seat, curb, and enclosure, if provided, that comply fully with the Standards and with Figs. 35, 36, and 37, as applicable. Standards §§ 4.1.3(11), 4.21, Figs. 35, 36, 37.

Q. Unisex Locker Room

- i. The entrance door to the locker room is inaccessible because it requires 20 pounds of force to open. Provide a door that requires no more than 5 pounds of force to open. Standards §§ 4.1.3(7), 4.13.11(2)(b).
- ii. The lavatory is inaccessible because the bottom of the apron is 28½ inches above the finished floor. Provide a lavatory with the top of its rim or counter 34 inches or less above the finished floor; the bottom edge of the apron at least 29 inches above the finished floor; and knee and toe clearances that comply with Fig. 31. Standards §§ 4.1.3(11), 4.22.6, 4.19.2, Fig. 31.
- iii. No accessible coat hook has been provided in the designated accessible toilet stall. Provide a coat hook at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
- iv. The toilet paper dispenser is inaccessible because it is located more than 36 inches from the rear wall. Provide a toilet paper dispenser that is mounted with its top at least 1½ inches under the side grab bar and 36 inches or less from the rear wall and is centered or located 15 inches above the finished floor. Standards §§ 4.1.3(11), 4.22.4, 4.17.3, Fig. 30(a).
- v. No accessible towel bar has been provided. Provide a towel bar at a maximum height above the finished floor of 48 inches for a forward approach or 54 inches for a side approach and that is accompanied by clear floor space of 30 by 48 inches that allows a forward or parallel approach by a person using a wheelchair. Standards §§ 4.1.3(12)(a), 4.25.2, 4.25.3, 4.2.4, 4.2.5, 4.2.6.
- vi. No accessible shower has been provided. Provide a shower in this room that is exactly 36 inches wide and 36 inches deep with an L-shaped shower seat mounted on the wall opposite the controls and extending the full depth of the stall, with a 48 inch long and 36 inch wide clear floor space alongside the shower opening which extends 12 inches beyond the shower wall on which the seat is mounted, enabling a parallel approach (Fig. 35(a)), and with a curb no greater than ½ inch OR a shower that is at least 30 inches deep and 60 inches wide with no curb or threshold and with a 36

inch deep and 60 inch wide clear floor space at the shower opening (Fig. 35(b)). Ensure that the shower has grab bars, controls, a shower spray unit, and a seat, curb, and enclosure, if provided, that comply fully with the Standards and with Figs. 35, 36, and 37, as applicable. Standards §§ 4.1.3(11), 4.21, Figs. 35, 36, 37.

R. Mini-Golf

- i. The circulation route is inaccessible because the wall-mounted electrical meter protrudes into the main walkway and is not detectable to blind persons using a cane. Provide an accessible route at this location such that no objects with their bottom leading edges measuring between 27 inches and 80 inches above the finished floor protrude more than 4 inches into walks, halls, corridors, passageways, or aisles. Providing a cane-detectable barrier is an acceptable solution. A protruding object (and cane-detectable barrier) shall not reduce the clear width of an accessible route or maneuvering space. Free-standing objects mounted on posts or pylons may overhang 12 inches maximum from 27 inches to 80 inches above the ground or finished floor. Standards §§ 4.1.2(3), 4.4.
- ii. Although an accessible drinking fountain is provided near the mini-golf course, there is no drinking fountain provided for people who have difficulty bending or stooping. Provide a drinking fountain that is accessible to people who have difficulty bending or stooping. This can be accommodated by the use of a "hi-lo" fountain; by providing one fountain accessible to those who use wheelchairs and one fountain at a standard height convenient for those who have difficulty bending; by providing a fountain accessible to people who use wheelchairs and a cup dispenser, or by such other means as would achieve the required accessibility for each group of people. Standards § 4.1.3(10)(a).

Attachment B

1. Installation of scald guards on all showering devices located in the Coach/Referee Locker Room, Team Locker Rooms #1 and #2, Team Locker Rooms #3 and #4 and the Unisex Locker Room regardless of work required by Attachment A.
2. Removal of all existing benches and replacement with ADA approved benches in the Coach/Referee Locker Room, Team Locker Rooms #1 and #2 and Team Locker Rooms #3 and #4. Removal of all existing benches includes repair to cinder block walls where existing benches had been attached.
3. Painting of all walls located inside the Coach/Referee Locker Room, Team Locker Rooms #1 and #2, Team Locker Rooms #3 and #4 and the Unisex Locker Room including the share shower facilities. Paint shall be heavy duty, high quality enamel based or epoxy resin based for use on cinder block in industrial locations with high humidity levels. Wall, shall be prepped with all holes, damaged areas and marred surfaces being repaired.

GENERAL CONDITIONS

1. INSURANCE REQUIREMENTS

- a. The Contractor shall file a Certificate of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below.
- b. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of performance under this bid and the subsequent contract.

<u>c. Type of Coverage</u>	<u>Minimum Limits</u>
Commercial General Liability (Including Products and completed Operations)	\$1,000,000 Per Occurrence \$2,000,000 Aggregate
Explosion, Collapse, Under- ground (XCU Endorsements) if applicable to the hazards of a specific project.	\$1,000,000 Per Occurrence \$2,000,000 Aggregate
Business Automobile Liability	\$1,000,000 CSL
Workers' Compensation	Statutory
Employer's Liability "Stop Gap" (if afforded by voluntary Workers' Compensation)	\$500,000 Each Accident \$500,000 Each Disease- Policy Limit \$500,000 Disease/Each Employee

Professional Liability Insurance: Contractor shall provide proof of professional liability insurance or errors and omissions liability insurance to protect the City from any and all claims arising from contractor's alleged or real professional errors, omissions or mistakes in the performance of professional duties in an amount not less than \$500,000. If the policy is a "claims made" policy, contractor shall provide the City with an endorsement evidencing an extended reporting period ("tail coverage") of not less than five years from the date of project completion. Contractor's subcontractors shall have the equivalent insurance coverage required of Contractor.

Builder's Risk: The City has Builder's Risk coverage that is shared between members of the W.A.R.M. property pool. Depending upon the size of the project, the City shall have the right to require the Contractor to obtain Builder's Risk Coverage (this would be listed as a separate pay item on the Proposal). The Contractor is responsible for obtaining insurance coverage for its own property at the job site.

- d. It is understood and agreed that these policies are primary and not contributory. All policies required under this contract shall be in effect for the duration of the project and contract. Insurance certificates must include a clause stating that the insurance

may not be canceled, amended or allowed to lapse until the expiration of at least thirty (30) days advance written notice to the City of Cheyenne.

- e. The City of Cheyenne shall be named as an **additional insured** on the Contractor's insurance policies, except workers' compensation, and the Contractor shall provide a copy of the endorsement providing this coverage.
- f. The City has the right to reject a certificate of insurance if the Contractor's insurance company is financially unstable. Any insurance company providing coverage under this contract shall have a minimum A.M. Best rating of A- (excellent).
- g. The City has the right to review the certificates of any or all subcontractors used by the Contractor. Further, the City has the right to require, as necessary, that the subcontractors' insurance coverage be equivalent to that required of the Contractor.
- h. The City has the right to increase the required minimum limit of liability on any contract project as warranted by an increase in hazard. Examples of increased hazard include, but are not limited to:
 - i. handling of hazardous materials
 - ii. activities involving large congregations of people
- i. The City shall have the right to consult with the Contractor's insurance agent for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, and certificates shall not affect the City's rights or Contractor's obligation hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

i. exclusions endorsed	iii. coverages	v. insureds
ii. deductibles	iv. coverage limits	

2. INDEMNITY:

- a. The Contractor agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures or suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse affects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by the CONTRACTOR'S breach of any term or provision of this agreement, or any negligent or willful acts, errors or omissions by the CONTRACTOR, its employees or subcontractors in the performance of this Agreement. The CONTRACTOR acknowledges that it may incur a financial obligation to the CITY pursuant to the terms of this paragraph.
- b. It is expressly understood and agreed that although the City and its authorized agents and employees have the right under this Agreement to observe and review the work and operations of the Contractor, this shall not relieve the Contractor from any of its covenants and obligations hereunder.

3. GOVERNMENTAL IMMUNITY:

The CITY and its officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyoming Statute §1-39-101, *et seq.*, and all other applicable laws. Further, the CITY fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. The CITY does waive its governmental immunities solely for the enforcement of the terms and conditions of this Agreement.

4. GOVERNING LAW, JURISDICTION and VENUE:

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

5. COMPLIANCE WITH LAWS:

This Agreement shall be governed in all respects by the laws of the State of Wyoming. The contractor shall comply with all applicable federal, state and local laws, rules and regulations in the performance of this contract. Applicable Federal and State laws, municipal ordinances, and the rules and regulations of all authorities having jurisdiction over design and construction of the project shall apply to the contractor, and they will be deemed to be included in the Agreement the same as though herein written out in full.

6. NONDISCRIMINATION:

The parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105 *et seq.*), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101 *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and all parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against in connection with the award and performance of this Agreement on the grounds of age, sex, race, creed, color, national origin, ancestry, religion, pregnancy or qualifying disability. The parties further assure that they will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing Agreements to similarly include this clause therein.

7. DRUG-FREE WORKPLACE:

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an "Alcohol and Controlled Substance Policy" that pertains to alcohol and drug usage by City employees. All independent contractors under contract with the City and their employees and subcontractors are required to comply with the provisions of this policy for drug and/or alcohol usage on City property or other sites occupied by the Contractor while performing the duties and responsibilities of the contract. It is the responsibility of the Contractor to become familiar with the requirements of this policy and to inform all subcontractors and employees of their obligation to comply and to ensure their compliance therewith. If the Contractor, the Contractor's employees or subcontractors are found in violation of this policy, the contract may be terminated. The Contractor is an independent

Contractor and shall comply with the City's Alcohol and Controlled Substance Policy and the provisions of this section.

8. CONTRACTS FOR PUBLIC IMPROVEMENTS:

Wyoming Statute § 15-1-113 is expressly incorporated herein by this reference as though fully set forth herein.

9. SAFETY PROGRAMS:

The CITY, as mandated by OSHA, has in place many safety programs. All independent contractors, their employees and their subcontractors, under contract with the CITY are required to comply with the provisions of the CITY'S Safety Programs while on CITY property or elsewhere while performing the duties and responsibilities of any contract or agreement with the CITY. It is the responsibility of the general contractor to familiarize himself with the requirements of these programs and to inform all of his employees and subcontractors of the requirements and ensure their compliance therewith. If the contractor, his employees or subcontractors are found to be in violation of these programs, the contract/agreement may be terminated. These programs include but are not limited to the following:

- a. Lock-out / Tag-out Procedures
- b. Respiratory Protection Program
- c. Hazardous Communications Program
- d. Confined Space Entry Program
- e. Risk Management Program

10. INDEPENDENT CONTRACTOR:

At all times during the term of this Agreement, Contractor shall be considered an independent contractor. Neither Contractor nor any one employed by it shall represent, act, purport to act or be deemed to be the agent, representative, employee or servant of the CITY.

11. CONFIDENTIALITY:

To the extent allowed by law, the CITY and Contractor shall treat as confidential and not disclose to others information (including technical information, experience or data) regarding either party's plans, programs, plants, processes, products, costs, equipment, operations, or customers which come within the knowledge of the parties, without in each instance securing the prior written consent of the other party, unless such disclosure is required by law or legal process. However, nothing shall prevent either Contractor or the CITY from disclosing to others or using in any manner information which either party can show (a) has been published or has become part of the public domain other than by acts of Contractor or the CITY; (b) has been furnished or made known to Contractor or the CITY by third parties without restrictions on its disclosure; or (c) was in either party's possession prior to the disclosure thereof by the CITY or Contractor to each other. Contractor shall not be restricted in any way from releasing information in response to a subpoena, court order, or legal process, but shall notify CITY of the demand for information before Contractor responds to such demand. CITY reserves the right to prohibit the release of said information as provided by law.

12. CONFLICT OF INTEREST:

In entering this Agreement, Contractor covenants that it presently has no interest, and shall acquire any interest direct or indirect financial or otherwise which would conflict in any manner or degree with performance of the services hereunder. Contractor further covenants that in the performance of the Agreement, no subcontractor or person having such an interest shall be employed. Contractor certifies that no one who has or will have any financial interest under this Agreement is an officer or employee of the CITY.

13. ACCEPTANCE NOT WAIVER:

The CITY'S approval of drawings, plans, specifications, reports, and incidental work or materials furnished hereunder shall not in any way relieve Contractor from responsibility for the technical accuracy of the work. The CITY'S approval or acceptance of, or payment for, any services shall not be construed to operate as a waiver of any of the CITY'S rights under this Agreement or any of its legal rights under statute and common law arising out of the performance of this Agreement.

14. DEFAULT:

Each and every term and condition herein shall be deemed a material element of this Agreement. In the event either party shall fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

15. REMEDIES:

- a. In the event a party declares the other party in default hereof, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate this Agreement and seek damages; (b) treat this Agreement as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity.
- b. In the event Contractor fails to strictly perform in accordance with this Agreement, the CITY may elect to make good such deficiencies and charge Contractor therefore.

16. TERMINATION:

The CITY may by written notice to Contractor terminate this Agreement in whole or in part by giving Contractor fifteen (15) days written notice. Upon receipt of such notice, Contractor shall:

- a. Discontinue all services affected (unless the notice directs otherwise); and
- b. Deliver to the CITY representative within five (5) days all documents belonging to the CITY including but not limited to data, drawings, specifications, reports, estimates and summaries accumulated by Contractor in the performance of this Agreement, whether completed or in progress. In the event of termination, CITY shall pay Contractor for all work accepted as of the date of termination.

17. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach thereof.

18. SERVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction such holding shall not affect the validity of the remainder of the Agreement, which shall continue in full force and affect.

19. SUCCESSORS AND ASSIGNS:

All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.

20. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of the other party. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder.

21. THIRD PARTY RIGHTS:

The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement. This paragraph is not intended nor shall it be construed to waive all the parties' immunities.

22. NOTICES:

Any notice, correspondence or billing required by the terms of this Agreement shall be delivered by hand, or delivered by mail, prepaid, to the address of the respective party representative (s) named below:

CITY: Rick Parish
Director of Parks & Recreation
2101 O'Neil Ave., Room 302
Cheyenne, WY 82001
Ph: 307- 638-4356

SUPPLEMENTAL CONDITIONS

The following supplemental conditions are hereby made a part of the Contract Documents and supplement or supersede any articles of these specifications. Any subsequent addenda issued after the Contract Documents have been issued to bidders shall supplement or supersede any articles of these specifications and shall be made a part of the Contract Documents.

1. PROJECT SITE

Taco John's Ice & Events Center, 1530 W. Lincolnway, Cheyenne, WY 82001

2. TIME FOR COMPLETION

The work which the Contractor is required to perform under this contract shall be commenced at the time stipulated by the City in the Notice to Proceed to the Contractor and shall be completed within one hundred and five (105) calendar days. Time will not be counted when the project is officially suspended by the City due to acts of God, winter shutdown, and City-originated suspensions that are necessary through no fault of the Contractor. In the latter instance, if the City suspends the work for more than 90 days, the Contractor may apply for a price adjustment to compensate for reasonable expenses caused by the suspension. Any application for price adjustment or contract time extension will be submitted to the governing body of the City for its consideration in the form of a contract modification. It will be the responsibility of the Contractor to provide sufficient documentation to substantiate any claim.

3. LIQUIDATED DAMAGES

For each calendar day that any work shall remain uncompleted after the contract time specified for the completion of the work provided for in the Contract, the following liquidated damages charges will be deducted from any monies due the Contractor:

ORIGINAL CONTRACT AMOUNT		LIQUIDATED DAMAGE CHARGE
From	to and including	Charge per calendar day
\$ 0.00	\$ 25,000.00	\$ 250.00
25,000.01	50,000.00	500.00
50,000.01	100,000.00	1000.00
100,000.01	500,000.00	1500.00
500,000.01	1,000,000.00	2000.00
1,000,000.01	1,500,000.00	3000.00
1,500,000.01	and greater	3500.00

Permitting the Contractor to continue and finish the work or any part of it after the time fixed for its completion, or after the use of additional contract time, will in no way constitute a waiver on the part of the City to any of its rights under the contract.

Unless otherwise provided in the Contract, liquidated damage charges will be calculated in accordance with the table. All time in excess of the required Contract time will be calculated on a calendar day basis.

4. CONTRACT DOCUMENTS

The City will furnish the Contractor, without charge, six (6) copies of the Contract Documents including technical specifications and drawings. Additional copies requested by the Contractor will be furnished at cost.

5. JOB OFFICES AND STAGING AREA

The Contractor and subcontractors may maintain such office and storage facilities on the site as are necessary for the proper conduct of the work. These shall be located so as to cause no interference to any work to be performed on the site. The City shall be consulted with regard to locations. Upon completion of the improvements, or as directed by the City, the Contractor shall remove all such temporary structures and facilities from the site, same to become the Contractor's property. The Contractor shall leave the site of the work in the condition required by the Contract.

On-site toilet facilities for employees of contractors and subcontractors shall be provided and maintained in a sanitary condition. The Contractor shall remove all trace of these facilities prior to completion of the project.

6. THE USE OF CITY OWNED REFUSE CONTAINERS.

All city contracts shall require all contractors to use City provided Sanitation services, i.e. roll-offs, dumpsters, etc.

7. PARTIAL USE OF SITE IMPROVEMENTS

The City may, at its option, give notice to the Contractor and place in use those sections of the improvements which have been completed, inspected, and can be accepted as complying with the Contract Documents and if, in its opinion, each section is reasonably safe, fit and convenient for the use and accommodation for which it was intended, provided:

- a. The use of such sections of the improvements shall in no way impede the completion of the remainder of the work by the Contractor;
- b. The Contractor will not be responsible for any damages or maintenance costs due directly to the use of such sections;
- c. The use of such sections shall in no way relieve the Contractor of liability arising from having used defective materials or to poor workmanship.
- d. Any guarantee period shall not commence until the date of the final acceptance of all work which the Contractor is required to construct under this contract.

8. PROJECT RECORD DOCUMENTS

The Contractor shall maintain at the job site one copy of all contract and project documents, each portion of which shall be clearly marked "Project Record Copy". These documents, including drawings, specifications, addenda, approved shop drawings, change orders, field orders, other contract modifications, and other approved documents submitted by the Contractor in compliance with various sections of the Contract Documents, shall be

maintained in good condition, available at all times for inspection by the City, and not used for construction purposes.

The Contractor shall mark up the most appropriate document to show significant changes made during construction progress, significant detail not shown in the original Contract Documents, and the information shall include, but not be limited to, location of underground utilities and appurtenances referenced to permanent surface improvements, and location of internal utilities and appurtenances concealed in building structures referenced to visible and accessible features of structures.

The Contractor shall keep the project record documents current and not permanently conceal any work until required information has been recorded. Upon completion of the project and prior to final acceptance, the Contractor shall submit the marked up set of project record documents to the Engineer for the City along with the "Contractor's Certificate of Completion" found in Part IV of the bidding documents. After the Engineer has inspected the work and has determined it to be substantially complete, the City will initiate a "Certificate of Substantial Completion," which will establish the date of commencement of the warranty period.

9. GENERAL TRAFFIC REQUIREMENTS

The Contractor shall provide adequate signs, barricades, lights, flares and flaggers, and take all necessary precautions to prevent accident or injury and to minimize inconvenience to the public during the progress of the work.

Material stored on or adjacent to public streets shall not obstruct or inconvenience the traveling public.

10. EXISTING ROADWAYS AND OTHER PROPERTY

The Contractor shall take all necessary precautions to protect adjacent roadways, properties and improvements, and underground facilities affected by the Contractor's operations, regardless of the ownership of the facilities.

Any existing improvements or facilities damaged by the Contractor's operations in the performance of the work under this Agreement shall be repaired or replaced by and at the expense of the Contractor to the satisfaction of the City.

11. PROJECT OBSERVATION

It is expressly understood and agreed that the City and Engineer shall have the right under this Agreement to observe and review the work and operations of the Contractor. However, such observation and review shall not relieve the Contractor of any responsibilities, obligations, or covenants hereunder, and the Contractor shall be responsible for and save harmless the City and Engineer and their respective representatives from all suits, actions, or claims of any character brought on account of any injuries or damages sustained by any person or property in consequence of any neglect in safeguarding the work, observing safety standards or regulations, or otherwise, or through the use of unsafe or unacceptable materials in the construction or completion of the project, or the Contractor's failure to comply with any law, ordinance, or regulation.

12. FINAL CLEANUP

The Contractor shall clean all areas affected by construction, removing all loose surface materials. All piles of excess excavation, rocks, rubbish, or other debris shall be cleaned up and disposed of. Damage to any areas by the Contractor will be repaired or replaced by the Contractor at no expense to the City. No extra compensation will be allowed for final cleaning of the site, but the cost thereof shall be included in the unit price bid for other items in the Proposal. If work is suspended for any reason, the Contractor will be required at the Contractor's expense, prior to shut down, to provide for the public's safety and use as directed by the City.

13. SAMPLES, TEST, CITED SPECIFICATIONS

All materials and work shall be tested and inspected in accordance with the specifications. Any work in which untested and unacceptable materials are used without approval or written permission shall be performed at the Contractor's risk and may be considered as unacceptable and unauthorized and will not be paid for; and if directed by the Engineer, shall be removed at the Contractor's expense.

Unless otherwise modified, and where applicable, tests in accordance with the most recent cited standard methods of AASHTO or ASTM, approved AASHTO Interim Specifications, or ASTM Tentative Specifications, which are current on the date of advertisement for bids, will be made at the expense of the Contractor. Samples will be taken and tests will be made by an independent laboratory. All materials are subject to inspection, test, and either acceptance or rejection at any time prior to, during, or after incorporation into the work. Copies of all test results shall be provided to the CITY and/or BOPU within twenty-four (24) hours of the availability of the test results with written report to follow within seven (7) working days.

14. FORCE ACCOUNT, EXTRA WORK, CHANGES IN THE WORK

When the Contractor is required to do work or services under the force account or extra work, the cost for said work will be calculated using the provisions of the Wyoming Department of Transportation system for determining costs for equipment, operators and labor involved. Any extra work, additions, deletions or revisions in the work will be authorized by written contract modification or change orders. The Engineer may authorize minor changes or alterations in the work not involving extra cost and not inconsistent with the overall intent of the Contract Documents in the form of a Field Order.

15. TWO YEAR WARRANTY PERIOD

If after the approval final payment and prior to the expiration of two years after the date of Substantial Completion or such longer period as may be prescribed by law or by the terms of any applicable special guarantee, the Contractor shall promptly, without cost to the City and in accordance with the City's written instructions, either correct such defective work or, if it has been rejected by the City, remove it from the site and replace it with nondefective work within thirty (30) days of written notification by the City. If the Contractor does not promptly comply with the terms of such instruction, the City may have the defective work corrected or the rejected work removed and replaced, and all costs incurred therefore, including compensation for additional professional services, shall be paid by the Contractor and its sureties. The remedies provided in this section are in addition to all other remedies

available to the City under applicable law and shall not be construed as exclusive of any other legal right or remedy available to the City.

16. ENGINEER/INSPECTOR OVERTIME AND USE OF CITY RESOURCES:

Inspection work required beyond normal working hours by any Engineer/Inspector having authority on the project must have the City's written approval 24 hours in advance of scheduled work. In emergency situations, verbal approval may be given followed by written approval on the next working day. In an emergency situation, verbal approval will suffice until the next working day at which time written approval will be obtained.

The Board of Public Utilities requires that requests for services on the weekend be made not later than 4:30 p.m. on the Thursday prior to need so that appropriate personnel arrangements can be made.

All costs for overtime inspection or professional services associated with the work will be paid for by the Contractor.

No City services, equipment, or personnel will be provided for this project unless specifically defined and stated in the bidding/contract documents, nor will any be provided free of charge unless expressly stated in these documents.

17. SEQUENCE OF WORK:

The Contractor shall make every effort to complete the work in a manner and fashion that minimizes closures and inconveniences to the public. Once barricades are placed, the CONTRACTOR shall show progress of work during normal working days and hours. The contract documents are compiled to support the efficient operations of the Contractor and are not intended to supplant the Contractor's responsibility of superintendence. Special consideration regarding schedules and/or work sequences necessary or anticipated during the course of the project will be identified in the Special Provisions.

SPECIFICATIONS

THE STANDARD SPECIFICATIONS GOVERNING THIS PROJECT SHALL BE THE "CITY OF CHEYENNE/BOARD OF PUBLIC UTILITIES CONSTRUCTION SPECIFICATIONS AND STANDARD DRAWINGS, 2007" WITH APPROVED AMENDMENTS ISSUED BY THE CITY ENGINEER AT THE TIME OF THIS CONTRACT.

IT IS THE CONTRACTOR'S RESPONSIBILITY TO KEEP CURRENT ON THESE AMENDMENTS. COPIES OF THESE AMENDMENTS ARE AVAILABLE IN THE OFFICE OF THE CITY ENGINEER.

SPECIAL PROVISIONS

THE SPECIAL PROVISIONS WILL ADD TO OR REVISE CERTAIN SECTIONS OF THE "CITY OF CHEYENNE/BOARD OF PUBLIC UTILITIES CONSTRUCTION SPECIFICATIONS AND STANDARD DRAWINGS, 2007". REVISED PARAGRAPHS AND ADDITIONS WILL CORRESPOND TO THE STANDARD NUMERICAL AND TITLE DESIGNATIONS.

THE SPECIAL PROVISIONS MAY ALSO INCLUDE NEW SECTIONS OF SPECIFICATIONS NOT COVERED IN THE STANDARD SPECIFICATIONS AND WILL BE NUMBERED STARTING FROM SECTION 04000.

**NON-COLLUSION AFFIDAVIT
OF PRIME BIDDERS**

State of _____

County of _____

_____, being first duly sworn, deposes and says that:

- (1) He/she is (owner, partner, officer, representative, or agent) of _____, the bidder that has submitted the attached bid;
- (2) He/she is fully informed respecting the preparation and contents of the attached bid and of all pertinent circumstances respecting such bid:
- (3) Such bid is genuine and is not a collusive or sham bid:
- (4) Neither the said bidder nor any of its officers, partners, owners, agents, representatives, employees, or parties in interest, including this affiant, has in any way colluded, conspired, connived or agreed, directly or indirectly with any other bidder, firm, or person to submit a collusive or sham bid in connection with the contract of which the attached bid has been submitted or to refrain from bidding in connection with such contract, or has in any manner, directly or indirectly, sought by agreement, collusion, communication, or conference with any other bidder, firm or person to fix the price or prices in the attached bid or of any other bidder; to fix any overhead, profit, or cost element of the bid price or the bid price of any other bidder; or to secure through any collusion, conspiracy, connivance, or unlawful agreement any advantage against the City or any person interested in the proposed contract; and
- (5) The price or prices quoted in the attached bid are fair and proper and are not tainted by any collusion, conspiracy, connivance, or unlawful agreement on the part of the bidder or any of the bidder's agents, representatives, owners, employees, or parties in interest, including this affiant.

Signed _____

Subscribed and sworn to before me
this _____ day of _____, _____.

(Title)

My Commission expires _____

SUBCONTRACTORS AND MATERIALS SUPPLIERS LIST

Bidder's Name _____

List materials suppliers and subcontractors proposed for this project and return list with bid:

*****NOTE*** Any Resident Bidder using Non-Resident subcontractors must fill in the percentage of work being done by the sub contractor.**

[illegible]

CONTRACTOR'S CERTIFICATION OF COMPLETION

TO: DATE _____
PROJECT _____
JOB NO. _____
CONTRACT NO. _____
ATTN: Resident Project Rep. OWNER _____

FROM: _____
(Firm or Corporation)

This is to certify that I, _____ am an authorized official of _____ working in the capacity of _____ and have been properly authorized by said firm or corporation to sign the following statements pertaining to the subject contract:

I know of my own personal knowledge, and do hereby certify, that the work of the contract described above has been performed, and materials used and installed in every particular, in accordance with, and in conformity to, the contract drawings and specifications.

The contract work is now complete in all parts and requirements, and ready for your final inspection.

I understand that neither the determination by the Engineer/Architect that the work is complete, nor the acceptance thereof by the Owner, shall operate as a bar to claim against the Contractor under the terms of the guarantee provisions of the contract documents.

BY _____

TITLE _____

FOR _____

CONSENT OF SURETY FOR FINAL PAYMENT

Project Name _____

Location _____

Project No. _____ Contract No. _____

Type of Contract _____

Amount of Contract _____

In accordance with the provisions of the above-named contract between the Owner and the Contractor, the following named surety:

On the Payment Bond of the following named Contractor:

hereby approves of final payment to the Contractor, and further agrees that said final payment to the Contractor shall not relieve the Surety Company named herein of any of its obligations to the following named Owner as set forth in said Surety company's bond:

IN WITNESS WHEREOF, the Surety Company has hereunto set its hand and seal this
_____ day of _____, _____.

(Name of Surety Company)

(Signature of Authorized Representative)

(Affix corporate
seal here)

Title _____

FINAL WAIVER OF LIEN

TO ALL WHOM IT MAY CONCERN:

WHEREAS, the undersigned has been employed by
(A) _____

to furnish labor and materials for (B) _____ work,
under a contract (C)

_____ for the improvement of the premises described as (D)

in the City of Cheyenne, Laramie County, Wyoming, of which the City of Cheyenne is the
Owner.

NOW, THEREFORE, this ____ day of _____, _____, for and in consideration
of the sum of (E) _____
Dollars

paid simultaneously herewith, the receipt whereof is hereby acknowledged by the undersigned,
the undersigned does hereby waive and release any lien rights to, or claim of lien with respect to
and on said above-described premises, and the improvements thereon, and on the monies or other
considerations due or to become due from the owner, on account of labor, services, material,
fixture, apparatus or machinery heretofore or which may hereafter be furnished by the
undersigned to or for the above described premises by virtue of said contract.

(F) _____ (SEAL)
(Name of sole ownership, corporation or partnership)

(Signature of Authorized Representative)

TITLE: _____

INSTRUCTIONS FOR FINAL WAIVER:

- (A) Person or firm with whom you agreed to furnish either labor, or services, or materials, or both.
- (B) Fill in nature and extent of work; strike the word labor or the word materials if not in your contract.
- (C) If you have more than one contract on the same premises, describe the contract by number if available, date and extent of work.
- (D) Furnish an accurate enough description of the improvement and location of the premises so that it can be distinguished from any other property.
- (E) Amount shown should be the amount actually received and equal to total amount of contract as adjusted.
- (F) If waiver is for a corporation, corporate name should be used, corporate seal affixed and title of officer signing waiver should be set forth; if waiver is for a partnership, the partnership name should be used, partner should sign and designate himself as partner.

AFFIDAVIT OF RELEASE OF LIENS

TO ALL WHOM IT MAY CONCERN:

WHEREAS, the undersigned has been employed by _____
to furnish labor and materials for _____ work, under a contract
_____ for the improvement of the property described as

_____ in the city/town of _____, County of _____, State of _____
of which _____ is the Owner.

NOW, THEREFORE, this _____ day of _____, _____, the undersigned,
as the Contractor for the above-named Contract pursuant to the conditions of the Contract hereby
certifies that to the best of his knowledge, information and belief, except as listed below, the
Releases or Waivers of Lien attached hereto include the Contractor, all Subcontractors, all
suppliers of materials and equipment, and all performers of work, labor or services, who have or
may have liens against any property of the Owner arising in any manner out of the performance
of the Contract referenced above.

Exceptions: (List names of suppliers and/or subcontractors and amounts owed. If none, write
"None.") The City will withhold the amounts listed below from final payment due the Contractor
until these obligations have been satisfied.

CONTRACTOR _____ (SEAL)
(Name of sole ownership, corporation or partnership)

(Affix corporate seal here) _____ (SEAL)
(Signature of Authorized Representative)

TITLE: _____

ATTACHMENTS:

1. Contractor's Release or Waiver of Liens, conditional upon receipt of final payment.
2. Separate Releases or Waivers of Liens from Subcontractors and material and equipment suppliers.

AFFIDAVIT OF PAYMENT

TO ALL WHOM IT MAY CONCERN:

WHEREAS, the undersigned has been employed by _____ to furnish labor and materials for _____ (work) under contract # _____ for the improvement of the property described as _____

_____ in the city/town of _____, County of _____, State of _____ of which _____ is the Owner.

NOW, THEREFORE, this ____ day of _____, _____, the undersigned, as the Contractor for the above-named Contract pursuant to the Conditions of the Contract hereby certifies that, except as listed below, he has paid in full or has otherwise satisfied all obligations for all materials and equipment furnished, for all work, labor, and services performed, and for all known indebtedness and claims against the Contractor for damages arising in any manner in connection with the performance of the Contract referenced above for which the Owner or his property might in any way be held responsible.

EXCEPTIONS: (If none, write "None." If required by the Owner, the Contractor shall furnish bond satisfactory to the Owner for each exception.)

ATTACHMENTS:

- I. Consent of Surety to Final Payment. (Whenever Surety is involved, Consent Of Surety is required.)
- II. Contractor's Release or Waiver of Liens, conditional upon receipt of final payment.
- III. Separate Releases or Waivers of Liens from Subcontractors and material and equipment suppliers.
- IV. Contractor's Affidavit of Release of Liens.

CONTRACTOR _____ (SEAL)
(Name of sole ownership, corporation or partnership)

(Affix corporate
seal here)

(Signature of Authorized Representative) (SEAL)

TITLE: _____

CONTRACT PAYMENT REQUEST

DATE:

CITY OF CHEYENNE -- CONTRACT PAYMENT REQUEST

PROJECT:

CITY BID NUMBER:

CITY CONTRACT NUMBER:

CITY PROJECT NUMBER:

CONTRACTOR:

CONTRACT PAYMENT REQUEST NUMBER:

The present status of the account for this contract is as follows:

Original Contract Amount.....	\$ _____
Net Change by Change Orders to Date	\$ _____
Current Contract Amount	\$ _____
Total Completed to Date	\$ _____
Less 10% Retainage	\$ _____
Total Earned Less Retainage	\$ _____
Less Previous Payments	\$ _____
Total Payment Due	\$ _____

In the opinion of the engineer, this estimate is complete and correct and conforms in all material respects with the requirements of the contract and payment is recommended:

RECOMMENDED BY:

PROJECT ENGINEER

AUTHORIZED BY:

CITY REPRESENTATIVE –

PERFORMANCE AND PAYMENT BOND REQUIREMENTS

1. Signature of principal must be affixed to the bond.
2. Signature of principal must be witnessed.
3. Name of principal must be witnessed.
4. The legal capacity of the principal must be stated in the caption of the bond (i.e., corporation, partnership or sole proprietorship).
5. If the principal is jointly owned, all owners must sign the bond.
6. If the principal is a partnership, at least two partners must sign the bond.
7. Signature of the attorney-in-fact acting on behalf of the surety company must appear on the bond.
8. The surety's seal must be affixed to the signature of the attorney-in-fact (Facsimile seals are NOT acceptable).
9. The surety company must be registered with the state insurance commission and qualified to do business in the State of Wyoming.
10. Power of Attorney/Acknowledgment of Surety must be signed, sealed and dated with the same date as execution of bond.
11. Date of written Agreement and date of bond must be same. Post-dated bonds are not acceptable.
12. Bond form must be completely executed. Bonds with blank spaces, including dates, are unacceptable.
13. The bond must be accompanied by a properly executed authorization of Power of Attorney.

Note: The bond shall continue in force throughout the project and a two-year warranty period; and at the discretion of the City, for any additional warranty period specified in the contract documents.

CORPORATE PRINCIPALS ONLY

14. The person signing on behalf of the corporate principal must state his/her legal capacity and he/she must be either the president or the vice-president if it is a corporation. If the officer or person signing on behalf of the corporate principal is other than the president or vice-president, there must be attached to the bond a resolution or certified evidence of authority that such officer or person has authority to sign in behalf of the principal.
15. The signature of the principal must be witnessed, or attested to if it is a corporate principal by ONLY the secretary or assistant secretary of the corporation.
16. The corporate seal must be affixed to the signature of the principal. (Facsimile seals are NOT accepted).
17. Each party is required to sign his/her own name.
18. All changes or strike-throughs must be initialed by the resident agent or attorney-in-fact of the surety company. The surety company must be notified of such changes.

PERFORMANCE AND PAYMENT BOND

KNOW ALL MEN BY THESE PRESENTS:

That

(Name of Contractor)

(Address of Contractor)

a _____, hereinafter called Principal,

and _____ hereinafter called Surety, are

(Name of Surety)

held and firmly bound unto the City of Cheyenne, Wyoming, Municipal Building, 2101 O'Neil Avenue, hereinafter called City, in the penal sum of:

_____ Dollars

(\$ _____), in lawful money of the United States, for the payment of which sum well and truly to be made, we bind ourselves, successors and assigns, jointly and severally, firmly by these presents.

THE CONDITION OF THIS OBLIGATION is such that Whereas, the Principal entered into a certain contract with the City, dated the _____ day of _____, _____, a copy of which is hereto attached and made a part hereof for the _____.

NOW, THEREFORE, if the Principal shall well, truly and faithfully perform its duties, all the undertakings, covenants, terms and conditions, and agreements, of said contract during the original term thereof, and any extensions thereof which may be granted by the City, with or without notice to the Surety and during the two-year guaranty period, and if the Principal shall satisfy all the claims and demands incurred under such contract, and shall fully indemnify and save harmless the City from all costs and damages which the City may suffer by reason of failure to do so, and shall reimburse and repay the City all outlay and expense which the City may incur in making good any default, then this obligation shall be void; otherwise to remain in full force and effect.

PROVIDED, FURTHER, that the said Surety, for value received hereby stipulates and agrees that no change, extension of time, alteration or addition to the terms of the Contract or to work to be performed thereunder or the specifications accompanying the same shall in any wise affect its obligation on this bond, and it does hereby waive notice of any such change, extension of time, alteration or addition to the terms of this contract or to the work or to the specifications.

PROVIDED, FURTHER, that no final settlement between the City and the Contractor shall abridge the right of any beneficiary hereunder whose claim may be unsatisfied.

IN WITNESS WHEREOF, this instrument is executed in ____ counterparts, each one of which shall be deemed an original, this the ____ day of _____, ____.

(Witness)

(Principal) (Seal)
By _____

(Title)

(Address)

(Witness)

(Surety) (Seal)
By _____

(Attorney-in-fact)

(Address)

Countersigned by:

By _____
(Wyoming Resident Agent)

(Address)

NOTE: Date of Bond must be same date as date of Contract. If Contractor is a partnership, all partners must execute bond.

IMPORTANT: Surety companies executing bonds must hold a Certificate of Authority issued by the State of Wyoming Insurance Department.



CITY OF CHEYENNE
PARKS & RECREATION DEPARTMENT ADMINISTRATION
2101 O'NEIL AVENUE, ROOM 302, CHEYENNE, WYOMING 82001
PHONE: (307) 638-4356 • FAX: (307) 638-4355 • www.cheyennecity.org

RFP-2-11
Pricing Sheet

1. Attachment A:

H. Administration Entrance Door.....	\$ 45.00 -
* L. Women's Toilet Room.....	\$ 4,540.00 -
Items: i, ii, iii	
M. Men's Toilet Room.....	\$ 120.00 -
Items: i, ii	
N. Coach/Referee Locker Room.....	\$ 6,260.00 -
Items: i, ii, iii	
O. Team Locker Rooms #1 and #2.....	\$ 7,550.00 -
Items: i, ii, iii, iv, v, vi, viii	
P. Team Locker Rooms #3 and #4.....	\$ 7,550.00 -
Items: i, ii, iii, iv, v, vi, vii	
Q. Unisex Locker Room.....	\$ 6,480.00 -
Items: i, iii, iv, v, vi	

2. Attachment B:

1. Scald Guards.....	\$ 12,580.00 -
2. Bench Rennovations.....	\$ 19,900.00 -
** 3. Painting.....	\$ 13,595.00 -
3. Total Amount:.....	\$ 78,620.00 -
4. Contingency Amount:..... (Add)	\$ 5,000.00 -

- * Partition colors won't match
** Painting with benches removed

Submitting Firm Information

Company Name: Edwards General Contractors, Inc.
Representatives Name: Richard B. Wilson
Address: 506 Shoshoni Street
Phone Number: 307-634-8400
Fax Number: 307-638-4764
Email: RWEdwl23@aol.com

Due Upon Interview Date. Please Seal Document.